

Melvin Simoes, et al. v. The Heights at Vista Del Mar Homeowners Association, 25CV-0455

Hearing: Motion for Reconsideration or for Relief under 473(b)

Date: June 16, 2026

TENTATIVE RULING

Glynette and Melvin Simoes filed this action against The Heights at Vista Del Mar Homeowners Association on July 10, 2025.

After a motion and hearing, on April 9, 2026, this Court, the Hon. Linda D. Hurst presiding, entered an order compelling responses, without objections, to Form Interrogatories, Special Interrogatories, and Requests for Production, awarding monetary sanctions, and allowing Defendant to file a motion for reconsideration. The Court deferred the determination of the amount monetary sanctions to the hearing on the motion for reconsideration.

Defendant has now filed a motion for reconsideration. In the alternative, Defendant seeks mandatory relief from waiver of objections under Code of Civil Procedure section 473, subdivision (b). Plaintiffs oppose the motion.

Defendant has Not Shown Grounds for Reconsideration.

A party may move for reconsideration of a prior order of the court based on new or different facts, circumstances or law.¹ (Code Civ. Proc., § 1008.) “[A] court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon ‘new or different facts, circumstances, or law.’” (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) “[T]he party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time. [Citation.]” (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338, 1342.)

Defendant contends that discovery of new facts warrants reconsideration.

In opposition to the original motion, Defendant contended that the discovery requests should not have been served on him, but on his client. The Court found that service on counsel was appropriate given the facts.

¹ “An order denying a motion for reconsideration is interpreted as a determination that the application does not meet the requirements of section 1008. If the requirements have been met to the satisfaction of the court but the court is not persuaded the earlier ruling was erroneous, the proper course is to grant reconsideration and to reaffirm the earlier ruling. [Citation.]” (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338, 1342.)

Now, Defendant's counsel declares that at the time he filed the opposition to the motion, he was under the belief that the discovery was served by mail on his physical office, per the proof of service, but learned shortly before the hearing that the requests had never been received. He declares that he first learned of the discovery via a January 4, 2026 email, which stated that all objections were waived. Counsel declares he and all but one person on staff work remotely. Counsel questions why the requests were served solely by mail, despite extensive email correspondence. (See Declaration of Neil C. Evans (Evans Decl.).)

Counsel admits he knew that by January 4, 2026, discovery responses were served. (Evans Decl., ¶ 8.) He declares that he assumed his staff had just missed the discovery and only learned that the discovery was not ever received on or about April 5, 2026, when he contacted Ambar Solario at the Costa Mesa Office to confirm that there was no record of any documents in this case received by U.S. Mail at any time. (Evans Decl., ¶ 8.) Counsel takes responsibility for failing to serve objections when he first discovered that requests had been served on January 4, 2026.² (Evans Decl., ¶ 9.) He declares that the waiver should be excused.

However, there is no reason that counsel should or could not have discovered that the discovery was not received until four days before the hearing. Just because counsel waited to call the office to confirm whether the discovery was received until days before the hearing, does not mean he could not have discovered that fact earlier.

The Court denies Defendant's request that it reconsider its April 9, 2026, order.

Relief under Code of Civil Procedure Section 473(b).

In the alternative, Defendant seeks relief from waiver of the objections under the mandatory attorney-fault provisions of Code of Civil Procedure section 473, subdivision (b). Counsel takes responsibility for the failure to timely respond to the discovery. (Evans Decl., ¶ 9.)

However, the Discovery Act provides specific procedures to seek relief from waiver of objections, which do not include a provision for mandatory relief pursuant to an attorney affidavit of fault. (See Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a), 2033.280, subd. (a).)

Because the Discovery Act contains specific procedure and conditions for relief from waiver, relief cannot be obtained under Code of Civil Procedure section 473, subdivision (b). (See *Zellerino v. Brown* (1991) 235 Cal.App.3d 1097, 1107 [relief under section 473 unavailable where discovery act provides procedures to seek relief]; *Scottsdale Ins. Co. v.*

² The Court notes that counsel also did not file a motion seeking relief from waiver, as is allowed under the Discovery Act, at that time.

Superior Court (1997) 59 Cal.App.4th 263, 274 [sole remedy for relief from waiver in the context of discovery is contained within the provisions of the Act and it cannot rely upon the provisions of section 473]; see also Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group 2025) §§ 8:1038.1, 8:1465.3.)

Defendant's request for relief from waiver pursuant to section 473, subdivision (b) is therefore denied.

Sanctions.

Plaintiffs' motion to compel and motion to deem requested monetary sanctions against Defendant. Plaintiffs did not seek sanctions against counsel. (See Notices of Motion and Points and Authorities.)

In its April 9, 2026, order, the Court stated that the amount of sanctions to be awarded would be determined at this hearing. The Court's tentative ruling on the motions to compel indicated that it planned to award Plaintiffs \$3,823 in sanctions connection with the motion to compel responses to the form interrogatories, special interrogatories and requests for production, and \$4,348 in sanctions in connection with the motion to deem RFAs admitted, the amount requested in the motion. (See Declarations of Lisa Toke in support of motion to compel and motion to deem RFAs admitted.)

Counsel for Plaintiffs declares that they have incurred an additional \$2,600 in monetary sanctions in connection with this motion for reconsideration and anticipate incurring another \$1,095 to review the reply and prepare for the hearing. (Declaration of Michaela Cotton, ¶¶ 6-7.)

The Court denies an award of additional sanctions, as sanctions are not authorized by Code of Civil Procedure sections 1008 or 473.

As to sanctions for the motions to compel, as noted above, Plaintiffs' notices of motion seek sanctions solely against the Defendant, not its counsel. However, the evidence now shows that the failure to respond is entirely the fault of counsel, and not his client.

The Court therefore awards a reduced amount of sanctions to Plaintiffs, representing the amount incurred in filing the two discovery motions as well as the \$60 filing fee; the additional time incurred cannot justly be imposed against Defendant itself.

The Court therefore awards Plaintiffs monetary sanctions against Defendant in the amount of \$1,543 in connection with the motion to compel responses to form interrogatories, special interrogatories, and requests for production.

The Court awards Plaintiffs monetary sanctions against Defendant in the amount of \$2,068 in connection with the motion to deem RFAs admitted.

ORDER

Defendant's motion for reconsideration, or in the alternative motion for relief under Code of Civil Procedure section 473, subdivision (b), is denied.

Plaintiffs are awarded monetary sanctions against Defendant in the amount of \$1,543 in connection with the motion to compel responses to form interrogatories, special interrogatories, and requests for production.

Plaintiffs are awarded monetary sanctions against Defendant in the amount of \$2,068 in connection with the motion to deem RFAs admitted.